

21STCV07986 21STCV07986

County: los-angeles

Division: Civil Law and Motion

Department: F43

Hearing date: 2026-09-23

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Case Number: 21STCV07986 Hearing Date: September 23, 2026 Dept: F43

Dept. F43

Hearing Date: 09-23-26

Case # 21STCV07986, Luna v. Caremeridian,
LLC, et al.

Trial Date: 11-02-26

APPLICATION TO BE
ADMITTED PRO HAC VICE

MOVING PARTY:
Attorney Ernest C. Tosh

RESPONDING PARTY: No opposition was filed.

RELIEF REQUESTED

Order granting attorney Ernest C. Tosh's
application to appear pro hac vice for plaintiff Abel Luna.

RULING: Application is granted.

SUMMARY OF ACTION

On March 1, 2021, plaintiff Abel Luna
(Plaintiff) filed this adult abuse and neglect action against defendants

CareMeridian, LLC dba Neurorestorative Oso North and Providence Health System - Southern California dba Providence Holy Cross Medical Center. Providence Health was dismissed. On June 20, 2025, Plaintiff identified National Mentor Healthcare, LLC dba Savita Health as a defendant.

On August 27, 2026, plaintiff Abel Luna filed the instant application for attorney Ernest C. Tosh to appear in this action pro hac vice. The application is unopposed.

ANALYSIS

A. Pro Hac Vice Applications

Any attorney licensed to practice before the bar of any United States court or the highest court in any state, and who has been retained to appear in a particular cause pending in a California court, but who is not a licensee of the California State Bar may apply to appear pro hac vice in California by submitting a written application and mailing notice to all interested parties, as well as notice and a \$50.00 application fee to the State Bar Association in San Francisco.¿ (Cal. Rules of Court, rule 9.40(a), (c), (e).)¿ An applicant may not reside or work in California, and may not perform regular or substantial business, professional, or other activities here. ¿(Id., rule 9.40(a).)

The application must state:

- (1) The applicant's residence and office address;
- (2) The courts to which the applicant has been admitted to practice and the dates of admission;
- (3) That the applicant is a licensee in good standing in those courts;
- (4) That the applicant is not currently suspended or disbarred in any court;

(5) The title of each court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and

(6) The name, address, and telephone number of the active licensee of the State Bar of California who is attorney of record.

(Cal. Rules of Court, rule 9.40(d).)

Plaintiff Luna submits the verified application of attorney Ernest C. Tosh to be admitted pro hac vice counsel on his behalf. (Verified App. of Ernest C. Tosh.) Mr. Tosh is licensed to practice law in the States of Texas, Arkansas, Oklahoma, North Carolina, and Wyoming and in the U.S. District Court for the Northern District of Texas, is in good standing with the state bars, and has never suspended or disbarred by any court.[1] (Id. ¶ 3.) Mr. Tosh is a resident of Texas, is not regularly employed in California, and does not regularly engage in substantial business, professional, or other activities in California. (Id. ¶ 2.) In the previous two years, Mr. Tosh has applied once to appear as pro hac vice counsel in California, the application was granted, and the case has been resolved. (Id. ¶ 4.)

Attorney Joseph M. Earley, III, plaintiff Luna's counsel of record, is the California attorney whose contact information has been provided. (Verified App. ¶ 5; Declaration of Joseph M. Earley, III.) Mr. Tosh's application, the notice of hearing, and payment of the processing fee have been submitted to the State Bar of California. (Verified App. ¶ 6; Cal. Rules of Court, rule 9.40(c).)

Because counsel have fulfilled the requirements of California Rule of Court, rule 9.40(c)-(e), the court grants attorney Ernest C. Tosh's application.

CONCLUSION and ORDER

Attorney Ernest C. Tosh's application to appear as counsel pro hac vice is granted.

Plaintiff Abel Luna to give notice.

[1] Mr. Tosh references several exhibits,
but no documents are attached to the application.